

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 3265 of 2019

Selim Ahmed

.....Informant-Petitioner.

-Versus-

Murad Hossain and others.

.....Opposite parties.

Mr. Mustaque Ahmed with

Ms. Sayeda Rafika Khatun, Advocates

.....For the Informant Petitioner.

Mr. M.A. Jabber, Advocate

.... For the opposite party Nos. 1-2.

Ms. Farhana Begum, Advocate

..... For the opposite party No.3

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

..... For the State Opposite party.

Heard on 04.12.2023, 10.01.2024 and

Judgment on 11.01.2024

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order of acquittal dated 26.08.2019 passed by the

learned Sessions Judge, Sylhet in Criminal Appeal No. 262 of 2019 allowing the appeal and setting-aside the judgment and order of conviction and sentence dated 30.06.2019 passed by the learned Senior Judicial Magistrate, Zokigonj Chowki, Sylhet in G.R Case No. 100 of 2016 corresponding to Zokigonj Police Station Case No. 07 dated 11.07.2016 convicting the accused-opposite party Nos. 1-2 under section 323 of the Penal Code, 1860 and sentencing them thereunder to suffer simple imprisonment for a period of 6(six) months and to pay a fine of Taka 500/- in default to suffer simple imprisonment for a period of 1 (one) month more and also convicting the accused-opposite party No.3 under section 324 of the Penal Code, 1860 and sentencing him thereunder to suffer imprisonment for a period of 1(one) year and to pay a fine of Taka 1,000/- in default to suffer simple imprisonment for a period of 2 (two) months more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

The facts of the case, in short, is that one, Selim Ahmed as informant on 11.07.2016 at 00.35 hours lodged an Ejahar with Zokigonj Police Station, Sylhet against the accused-opposite parties and others under sections 143/114/307/ 326/325/323/379 of the Penal

Code stating, inter-alia, that out of previous enmity the accused-opposite parties and others on 01.07.2016 at 7:30 hours conjointly attacked the informant and at that point of time accused No. 2, Morad dealt a knife blow on the head of the informant and thereafter, local people tried to settle the matter while the accused No.2, Morad told that he will not obey the decision of salish committee. Thereafter, on 08.07.2016 at 8:00 hours the accused persons in collusion with each other being armed with deadly weapons again attacked the accused-petitioner and then accused Morad gave a Dao blow on the middle portion of the head of the informant victim and accused No.4 Parvez gave a dagger blow on the back side of the informant resulting the informant falls to the ground while accused No.7, Iqbal and accused No.3, Emad Uddin dealt hammer blow on the head of the victim informant and thereafter, accused No.4 dealt Chinese Axe blow on the knee of the left leg of the informant victim and accused No.6, Jewel Ahmed took away Taka 10,000/- from his pocket and thereafter, all the accused persons seriously beaten on the person of the victim and at that time local people came to the place of occurrence and took the victim in hospital for treatment.

Upon the aforesaid First Information Report, Zokigonj Police Station Case No. 7 dated 11.07.2016

under sections 143/114/307/ 326/325/323/379 of the Penal Code was started against the convict petitioner and others.

Police after completion of usual investigation submitted charge sheet against 5 accused including the present 3 accused opposite parties being charge sheet No. 166 dated 10.12.2016 under sections 143/323/324/114/307/ 379 of the Penal Code.

In this background the accused-opposite parties and others were put on trial in the Court of the learned Senior Judicial Magistrate, Zokigonj Chowki Court, Sylhet to answer a charge under sections 143/323/324/114/307/379 of the Penal Code in which the accused opposite parties and others pleaded not guilty and prayed to be tried stating that they have been falsely implicated in this case out of previous enmity with the informant party.

At the trial, the prosecution side examined in all 07(seven) witnesses to prove its case, while the defence examined none.

On conclusion trial, the learned Senior Judicial Magistrate, Zokigonj Chowki Court, Sylhet by his judgment and order dated 30.06.2019 found the accused-opposite parties guilty under section 323/324 of the

Penal Code and sentenced them as stated above, while acquitted 2 other accused persons.

Against which the accused-opposite parties preferred 2 criminal appeals being Criminal Appeal No. 262 of 2019 and Criminal Appeal No. 269 of 2019 before the learned Sessions Judge, Sylhet, who after hearing both the appeals simultaneously by the impugned judgment and order dated 26.08.2019 allowed the appeal and set-aside the judgment and order of conviction and sentence dated 30.06.2019 passed by the trial Court below.

Being aggrieved by the aforesaid impugned judgment and order dated 26.08.2010 passed by the learned Sessions Judge, Sylhet in Criminal Appeal No. 262 of 2019 and Criminal Appeal No. 269 of 2019 the informant-petitioner moved before this Court and obtained the present Rule.

Mr. Mustaque Ahmed, the learned Advocate appearing for informant-petitioner takes me through the impugned judgment and order, deposition of witnesses and other materials on record and then submits that the learned Sessions Judge, Sylhet without applying his judicial mind to the evidence of witnesses including medical certificate of the victim most illegally set-aside

the well founded judgment and order of conviction and sentence dated 11.07.2016 passed by the trial Court and thereby acquitted opposite parties from the charge levelled against them. The learned Advocate further submits that all the witnesses disclosed that all the accused persons conjointly attacked the informant, while accused No. 2, Morad dealt a Dao blow on the middle portion of the head, accused No.3, Emad Uddin dealt hammer blow on the head of the informant and accused No.4 Parvez gave a dagger blow on the back of the informant resulting the informant falls to the ground and at that time local people came to the place of occurrence and took the victim in hospital for treatment and the trial Court rightly found the accused-opposite party Nos. 1-3 guilty under section 323/324 of the Penal Code and sentenced them as stated above but the Court of appeal below giving a go-by to the evidence of PWs as well as medical certificate of the victim mechanically acquitted the accused opposite parties, which occasioned a failure of justice.

Finally, the learned Advocate submits that this is a fit case for remand to the court of appeal below for proper adjudication of the matter, unless the case is remanded for writing fresh judgment, the informant party will be seriously prejudiced.

Mr. M.A. Jabber, the learned Advocate appearing for the accused-opposite party Nos. 1-2, on the other hand, supports the impugned judgment of the appellate Court below, which was according to him just, correct and proper. The learned Advocate at the very outset submits that F.I.R. itself speaks that the allegation are so serious but the doctor submitted medical report stating that the injuries are very simple in nature. The learned Advocate further submits that a combined reading of the first information report, deposition of witnesses and other materials on record would prove that out of previous enmity the informant lodged this false case in order to victimise the accused persons. Finally, the learned Advocate submits that there are so many contradictions/ discrepancies in the prosecution witnesses on material points and as such, the Court of appeal below rightly acquitted the accused-opposite parties from the charge as levelled against them.

Ms. Farhana Begum, the learned Advocate appearing for the accused-opposite party No.3, the Court of appeal below committed no wrong in the finding that prosecution could not prove its case beyond doubt against the accused-appellants inasmuch as there are glaring omissions and material contradictions in the statements of the prosecution witnesses.

Ms. Shahida Khatoon, the learned Deputy Attorney-General submits that without any prior permission from the solicitor office the informant-petitioner filed this case against the impugned judgment and order of acquittal and as such, the present revision application is misconceived, incompetent and not tenable in the eye of law.

Having heard the learned Advocates for both the sides and the learned Deputy Attorney General, perused the criminal revisional application under section 439 read with section 435 of the Code of Criminal Procedure, the F.I.R. deposition of witnesses and other materials on record including the judgments of 2 Courts below, now the only question that calls for my consideration in this Revision is whether the Court of appeal below committed any error in finding that there are contradiction in the prosecution witnesses on material points and that the accused-appellants are entitled to get benefit of doubts.

On scrutiny of the record, it appears that in this case Investigating Officer was not examined by the prosecution. It further appears that in this case prosecution side examined 7 witnesses out of which PW-1, PW-2, PW-3, PW-4 and PW-5 are highly interested witnesses as they are close relative with each others. PW-6 and PW-7 are doctors. PW-6, Doctor Khaled

Ahmed stated in his evidence that- “সব জখম সাধারণ প্রকৃতির এবং ভোতা অস্ত্রের”. In cross examination this witness stated that- “আঘাত হলে যে কোনভাবে হতে পারে। কোথাও পড়ে গিয়েও হতে পারে।” It further appears that the Court of appeal below on due consideration of the entire evidence and materials on record observed as follows:

“On perusal of the L.C.R. it appears that the prosecution adduced 7 witnesses to prove the case. Out of them P.W.-1 Selim Ahmed, the informant, has deposed implicating accused Monir, Murad, Parvez and Emaduddin. Out of them accused Monir was the hukumerashami but he was acquitted by the Id. Magistrate. Although P.W.-1 Selim Ahmed, the informant, has alleged that accused Parvez inflicted a dagger blow on his back but PW-6 Dr. Khaled Ahmed, the examining doctor found no such injury in the back of informant Selim Ahmed. Although PW-7 Dr. Md. Hasanur Rahaman Chowdhury has found an incised wound over back of the chest of Selim Ahmed but he has stated in cross that he himself did not examine the victim”.

This finding of the Court of appeal below is well founded and backed by the cogent evidence on record.

On a perusal of the record, it appears that there are glaring omissions and material contradictions in the statements of the witnesses.

At the end of the day, Mr. M.A. Jabber, learned Advocate for the opposite party Nos. 1-2 relying on the decision reported in 20 BLC (AD) 207 submits that subsection (4) of section 439 of the Code debars the High Court Division to convert an order to acquittal to one of conviction. In the said decision it has been observed that High Court Division has exceeded its revisional power by restoring the conviction on setting aside the order of acquittal to one of conviction.

I find no reason to differ such well settled principle of law. So, I accept the same.

Considering all these aspects of the case as revealed from the materials on record, it appears to me that the prosecution could not prove its case beyond all reasonable doubts and thus, the learned Sessions Judge, Sylhet committed no illegality in acquitting the accused-opposite parties from the charges levelled against them. Besides, there is another aspect of the matter. The learned Deputy Attorney General points out that without any prior permission from the Solicitor Office the informant-petitioner filed this case before this Court against the impugned judgment and order of acquittal and as such the Instant revisional application is incompetent not maintainable.

On a query from the Court, the learned Advocate for the informant petitioner could not show any document that the informant obtained any prior permission to file the case against judgment and order of acquittal from the Solicitor Office. Therefore, I find substance and force in the submission of the learned Deputy Attorney General.

In view of my discussions made in the foregoing paragraphs it is by now clear that the instant Rule must fail.

In the result, the Rule is discharged. The order of acquittal is hereby maintained.

Send down the lower Court's records at once.